bdcp

BLACKTOWN DEVELOPMENT CONTROL PLAN

2015

Part M

The Ponds

Blacktown City Council

Table of Contents

1 Introduction 4
1.1 Structure of this Part 4
1.2 Land to which this Part applies 6
1.3 Relationship to planning instruments and policies 8
1.4 General objectives 8
2 Development principles and objectives 9
2.1 Overall The Ponds DCP framework 9
3 Urban design 11
3.1 Land use 11
3.2 Circulation network 18
4 Site planning 28
4.1 Land capability – salinity and sodicity 28
4.2 Aboriginal heritage 28
4.3 Contamination 29
4.4 Cut and fill 29
4.5 Flora and fauna 29
5 Housing 31
5.1 Introduction 31
5.2 Dwelling houses 33
5.3 Dual occupancies 36
5.4 Attached dwellings and multi dwelling housing 38
5.5 Common issues 39
6 Commercial / community uses 45
7 Information to be submitted with a Development Application 46
Appendix 1 Definitions 48
Appendix 2 Recommended vegetation species 50

Figures

Figure 1.1 Location plan 5
Figure 1.2 Area to which this Part applies 7
Figure 2.1 Design structure 10

Figure 3.1 Land use 12
Figure 3.2 Neighbourhood and community facilities 13
Figure 3.3 Open space and conservation areas 16
Figure 3.4 Residential density distribution 17
Figure 3.5 Access and linkages plan 19
Figure 3.6 Street hierarchy plan 20
Figure 3.7 Typical collector road 23
Figure 3.8 Typical local street 24
Figure 3.9 Typical local street adjacent to trunk drainage 25
Figure 3.10 Pedestrian and cycle network 27
Figure 5.1 Streetscape planning principles – typical block (typical street) 31
Figure 5.2 Streetscape planning principles – typical block (facing open space) 31
Figure 5.3 Acceptable orientation 32
Figure 5.4 Acceptable orientation – corner allotment 32
Figure 5.5 Minimum setback controls for dwelling houses 33
Figure 5.6 Carport controls 35
Figure 5.7 Architectural treatment of dwelling facades 40

Tables

Table 3.1 Road carriageway and reserve widths 21
Table 3.2 Street character 22
Table 5.1 Development controls for dwelling houses 34
Table 5.2 Development controls for dual occupancy housing 37
Table 5.3 Development controls for attached dwellings and multi dwelling housing 39

1 Introduction

This Part of Blacktown Development Control Plan (DCP) 2015 has been developed to provide detailed development controls and standards to encourage innovative development within the suburb of The Ponds. This will be done within the context of:

(a) Ensuring the proper management, development and conservation of natural and man-made resources within the area

(b) Conserving and managing the cultural and ecological significance of the area

(c) Creating a flourishing environment for communities to live in.

1.1 Structure of this Part

The following sections of this Part present the development principles and establish corresponding development controls. Each section has its own set of objectives and development controls that will be used to demonstrate the appropriate application of the controls. Figure 1.1 indicates the location of The Ponds.

This Part is structured to provide guidance on:

(a) Development principles and objectives (overall structure)

(b) Urban design and site planning controls

(c) Housing controls (dwelling houses, dual occupancy, attached dwellings, multi dwelling housing, detached studios)

(d) Commercial / community uses.

Section 7 details information to be provided with any Development Application (DA) covered by the development guidelines identified in this Part of the DCP.

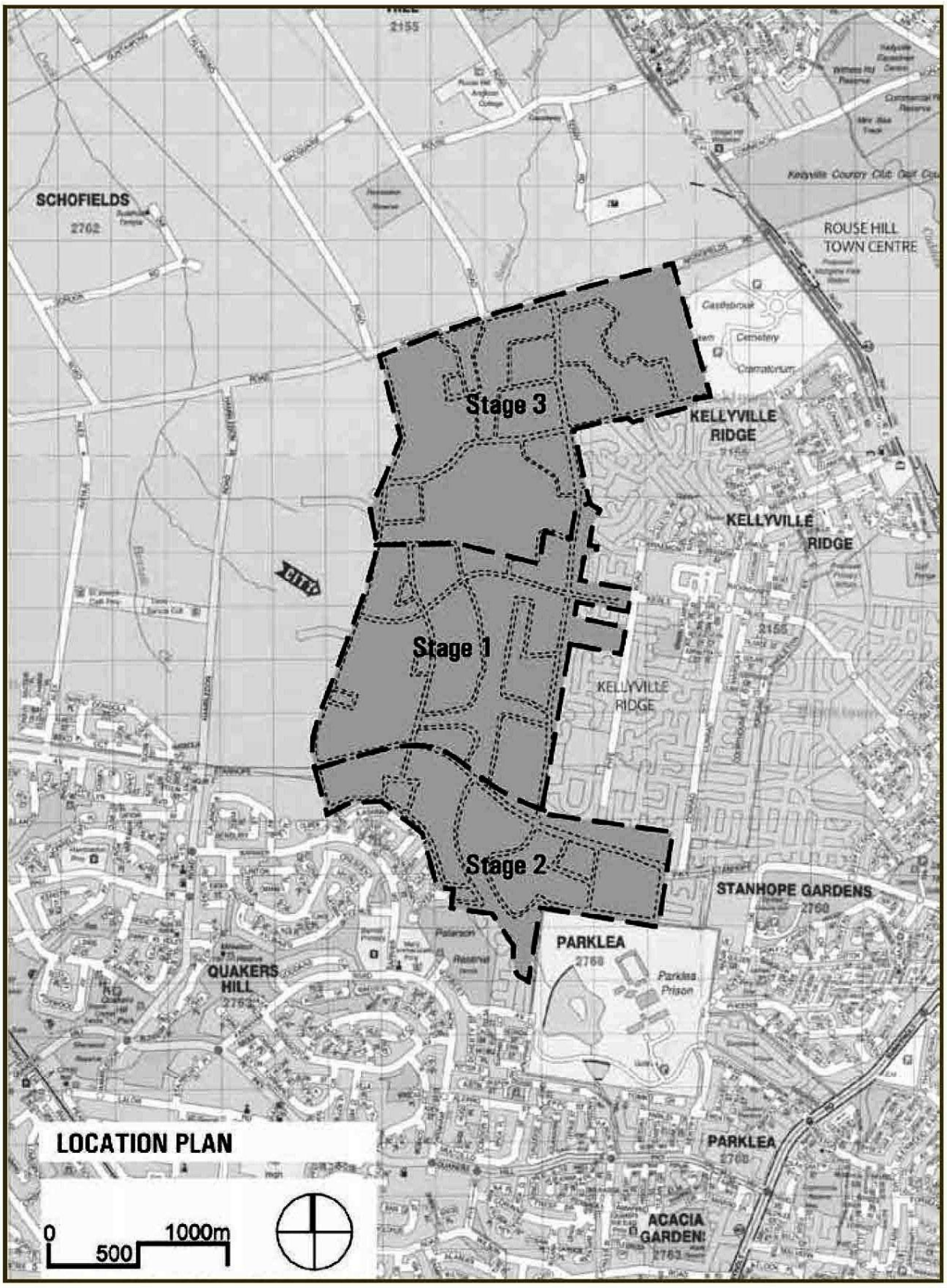


Figure 1.1 Location plan

1.2 Land to which this Part applies

The Ponds overall site comprises approximately 330ha of land which slopes from its east and west edges down to Second Ponds Creek that runs north/south through the centre of the site.

This Part applies to the land shown hatched on Figure 1.2. The land is zoned under the provisions of Blacktown Local Environmental Plan (LEP) 2015. Accordingly, Blacktown City Council is the consent authority for the site.

When a DA is lodged which relates to land to which this Part applies, Council will take the provisions of Blacktown DCP 2015 into consideration in determining the DA. Variations may be sought in special circumstances where that development standard may not provide the best solution. The extent of, and reasons for, such variations must be fully documented and submitted to Council for consideration.

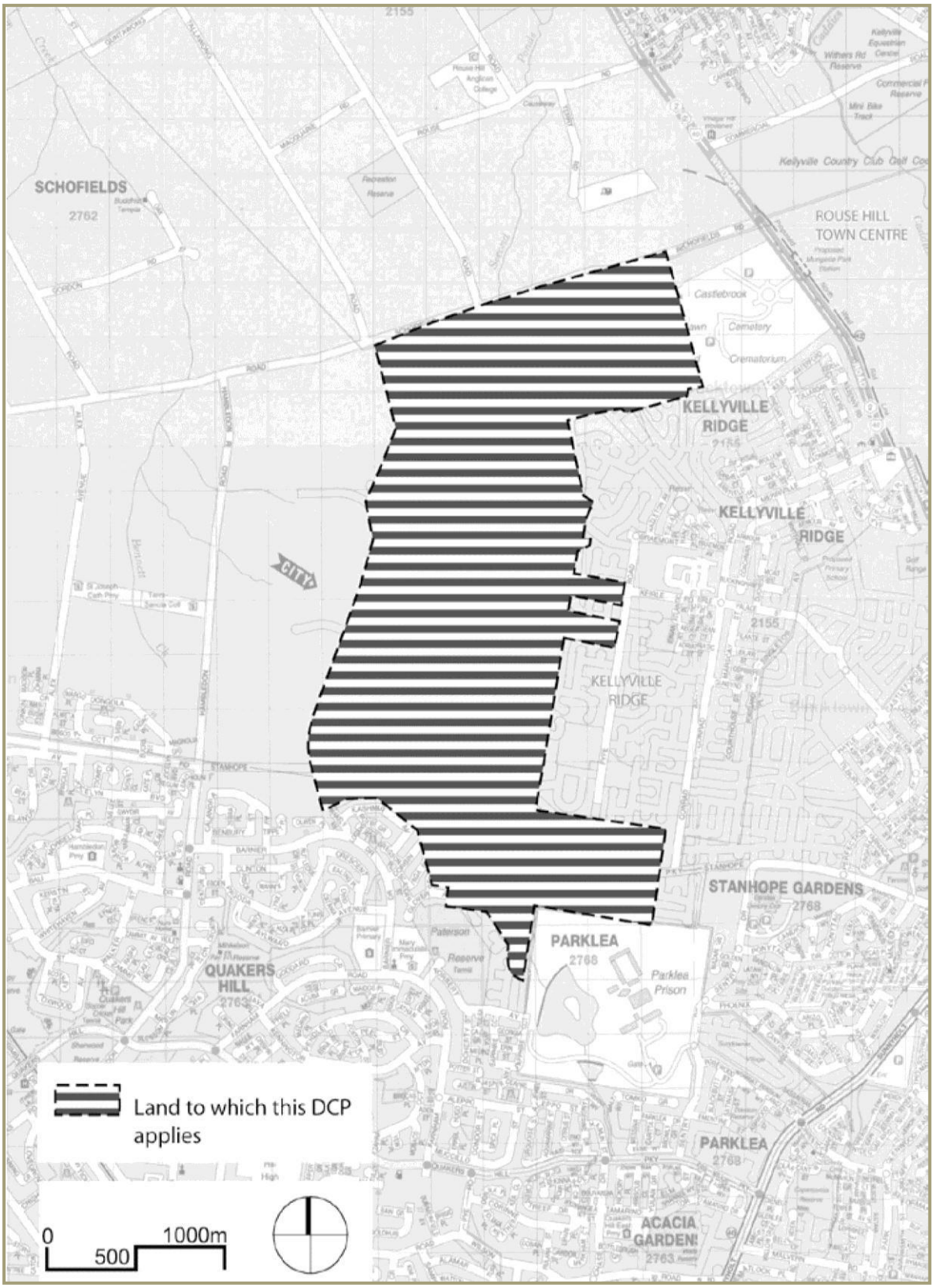


Figure 1.2 Area to which this Part applies

1.3 Relationship to planning instruments and policies

This Part is made under, and conforms with, Blacktown LEP 2015. The Blacktown LEP 2015 takes precedence over the DCP to the extent of any inconsistency.

Where there is an inconsistency between this Part and any other Part of the DCP in force, the provisions of this Part should prevail to the extent that it applies to the land to which this Part relates. Where an element is not covered by this Part then other sections of Blacktown DCP 2015 may apply. This Part is to be read in conjunction with the following:

(a) Blacktown Local Environmental Plan 2015

(b) Blacktown Development Control Plan 2015

(c) Other relevant Council policies

(d) Relevant Section 94 Contributions Plans adopted by Blacktown City Council

(e) Relevant State Environmental Planning Policies.

1.4 General objectives

The Ponds site provides an opportunity to create a diverse residential and complementary use development that integrates with the existing landscape qualities of the site. It is intended that this Part of the DCP will achieve the following:

(a) Outline the broad strategic planning intentions for The Ponds site and to provide detailed development controls

(b) Outline criteria which would be relevant to broad types of development, covering issues including urban character, landscaping, transport, traffic and access, car parking, ecologically sustainable development, indigenous heritage, waste management and pollution control

(c) Meet ecological, social and economic needs of the community and ensure intergenerational equity between all stages of the development

(d) Specify criteria to be applied in the assessment of development proposals and to ensure that such development is consistent with the planned character of each locality

(e) Specify the minimum standard of information to be submitted with any DA and to ensure a clear process for applicants to follow.

2 Development principles and objectives

The aim of this Part of the DCP is to provide detailed planning and development controls to encourage innovative development which optimises the available land resource. It also aims to ensure the appropriate management, development and conservation of natural and man-made resources within the area to which this Part relates.

The following sections describe underlying principles to achieve the desired built form and public domain.

2.1 Overall The Ponds DCP framework

The plan design allows for a potential yield of approximately 3,400 new residential lots.

Two primary schools and various community facilities are proposed to support the new residential community. A number of new residential neighbourhood areas will be created in one of the main urban development fronts in the Sydney metropolitan area.

The Second Ponds Creek trunk drainage corridor forms a linear open space through the proposed new residential areas and establishes connections to many of the proposed community facilities. The linear parkland commences from Schofields Road and extends to Paterson Reserve, being a distance of approximately 3km.

The parkland comprises an average width in the order of 100m and encompasses much larger areas where there are existing significant stands of vegetation, worthy of conservation.

The treatment of the proposed linear parkland is critical to the success of this new suburban living environment. The design structure is described in Figure 2.1.

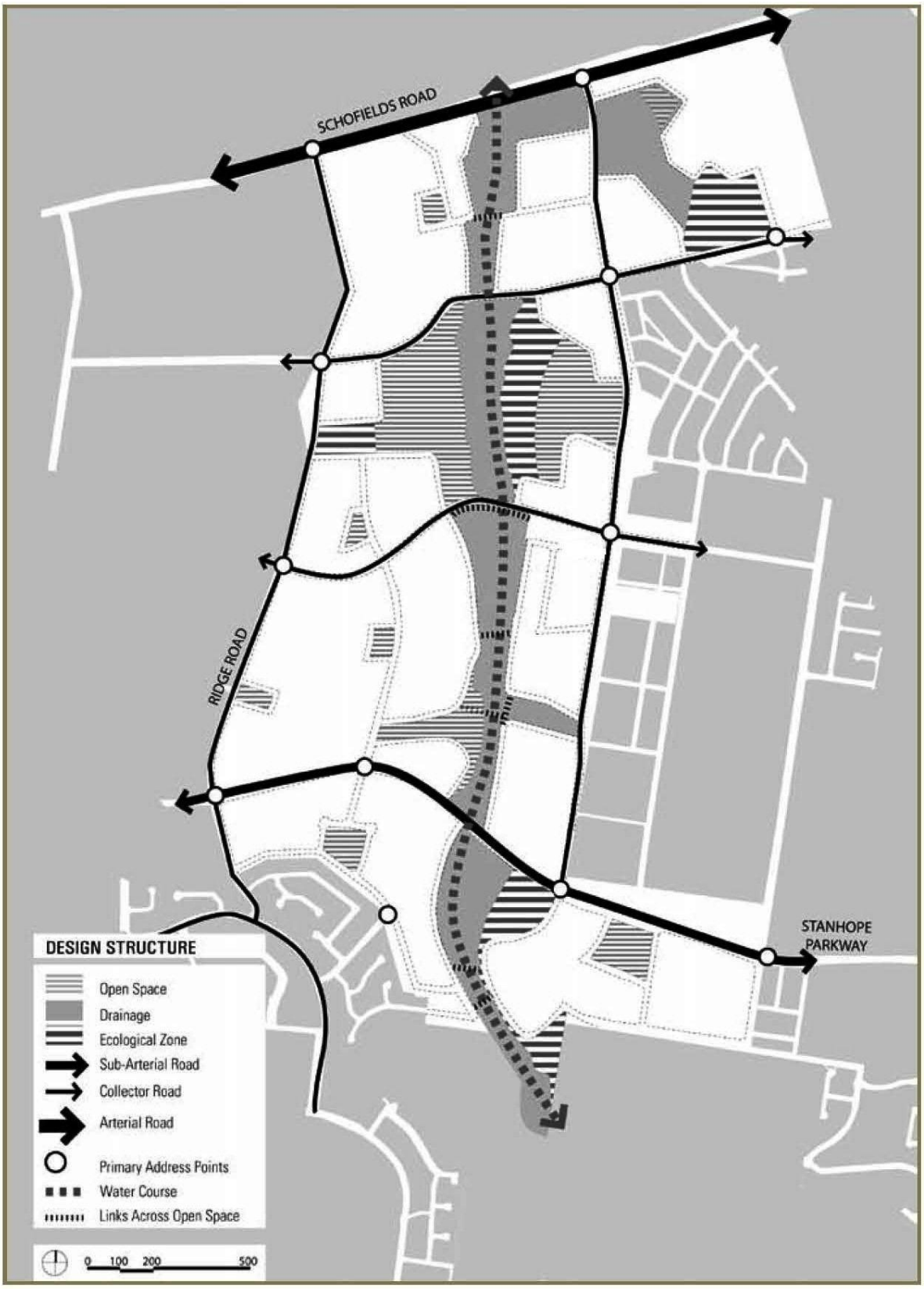


Figure 2.1 Design structure

3 Urban design

The public infrastructure and spaces which provide the overall framework for the development of the site should achieve the following:

(a) Provide the necessary public domain and infrastructure to support a community

(b) Provide pedestrian, cycle and public transport access to housing, jobs, open space and services

(c) Increase choice in available transport options and reduce dependence on cars

(d) Support the efficient and viable operation of existing local public transport services

(e) Manage and mitigate salinity

(f) Manage stormwater and flood sustainability by incorporating water sensitive urban design (WSUD).

The following sections set out the objectives and development controls that relate to those general elements. Refer to Figure 2.1 Design structure.

3.1 Land use

3.1.1 Neighbourhood and community facilities

- **Objectives**

  (a) Facilitate sustainable communities to ensure intergenerational equity

  (b) Locate facilities which will support community needs and facilitate interaction for residents

  (c) Locate community facilities within residential precincts that are usable and provide a range of social, active and passive functions.

- **Controls**

  (a) Community facilities such as child care should be generally located as indicated on figure 3.2

  (b) A development application is required for each community facility and/or child care site.

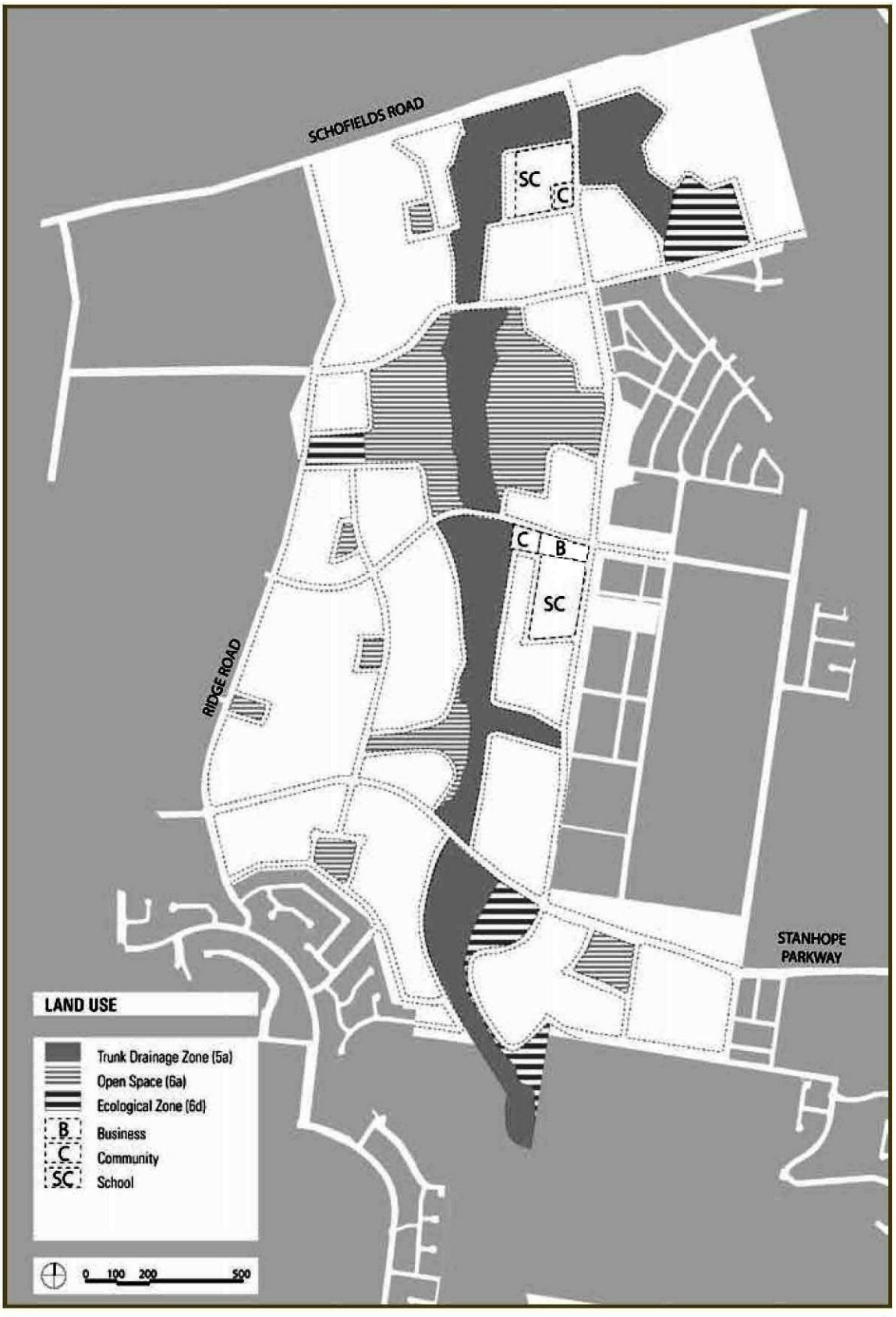


Figure 3.1 Land use

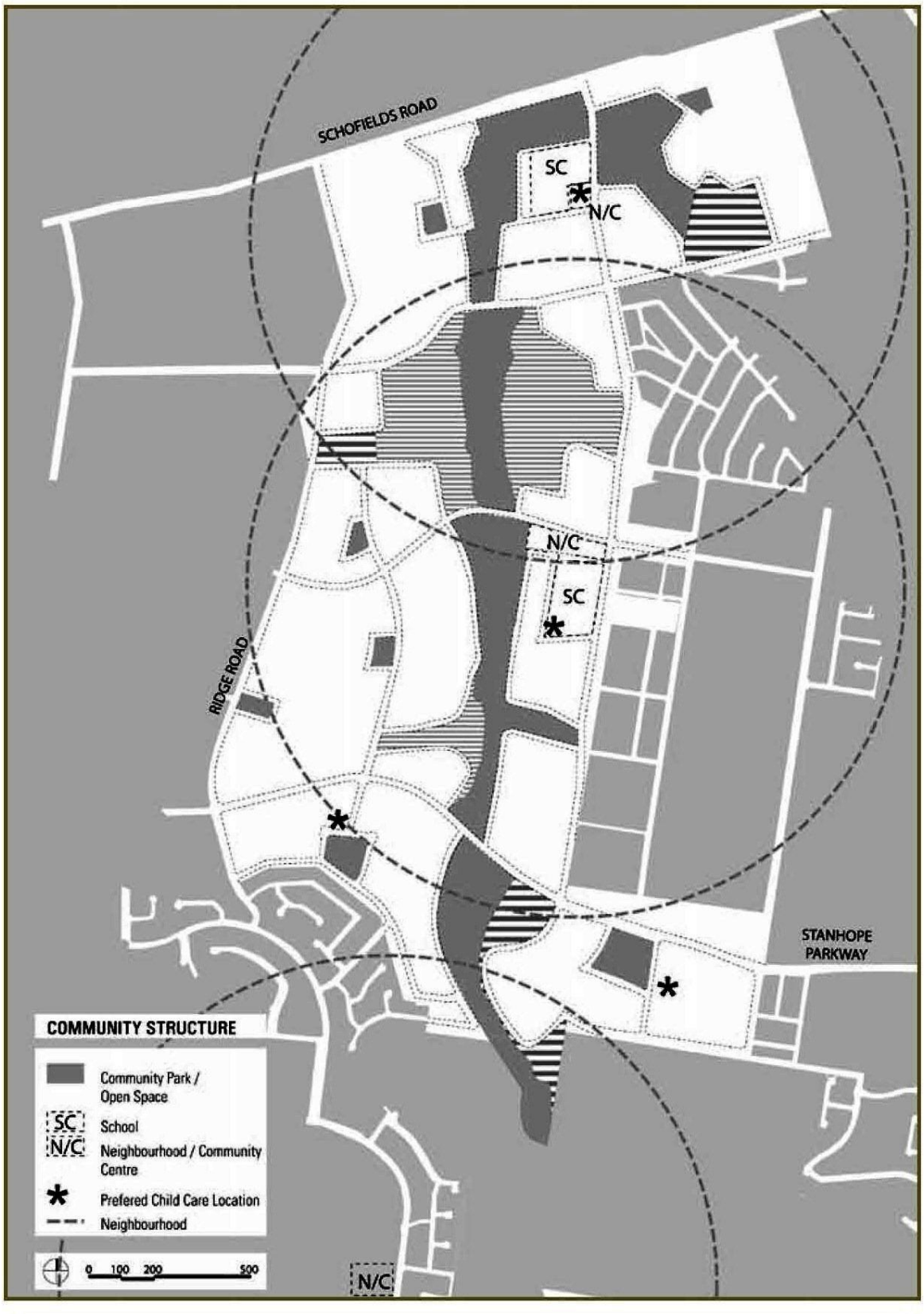


Figure 3.2 Neighbourhood and community facilities

3.1.2 Primary school

- **Objectives**

  (a) Ensure that school buildings are of a scale and character consistent with the business centre and community facilities. Respond to natural systems, protecting and enhancing areas of natural, indigenous and scenic importance

  (b) Integrate the primary schools with the neighbourhood centres and community uses.

- **Control**

  A Development Application is required for each school site.

3.1.3 Open space and conservation areas

- **Objectives**

  (a) Respond to natural systems, protecting and enhancing areas of natural, indigenous and scenic importance

  (b) Provide for diversity of interests catering for a wide range of users

  (c) Ensure an equitable distribution of open space throughout the development.

- **Controls**

  (a) Provide a range of open space and conservation areas in accordance with figure 3.3:

  (i) Trunk drainage zone

  (ii) A - Neighbourhood parks

  (iii) B - Open space

  (iv) C - Open Space and ecological areas

  (b) Open space and conservation design is to have consideration to stormwater, WSUD, salinity and sodicity management requirements

  (c) Detailed designs of each open space and conservation area are to be submitted to Council for approval

  (d) Designs are to include the identification of areas of native vegetation and aboriginal heritage and how the area will be developed without an overall adverse impact on these issues.

3.1.4 Residential density distribution

- **Objectives**

  (a) Provide a variety of housing types to meet the needs of the community

  (b) Ensure attached dwellings and multi dwelling housing are generally located near open space and centre-based facilities.

- **Control**

  Attached dwellings and multi dwelling housing are to be located generally around local centres, local parks, schools, on collector roads, near bus routes and the central trunk drainage zone (refer to Figure 3.4 Residential density distribution).

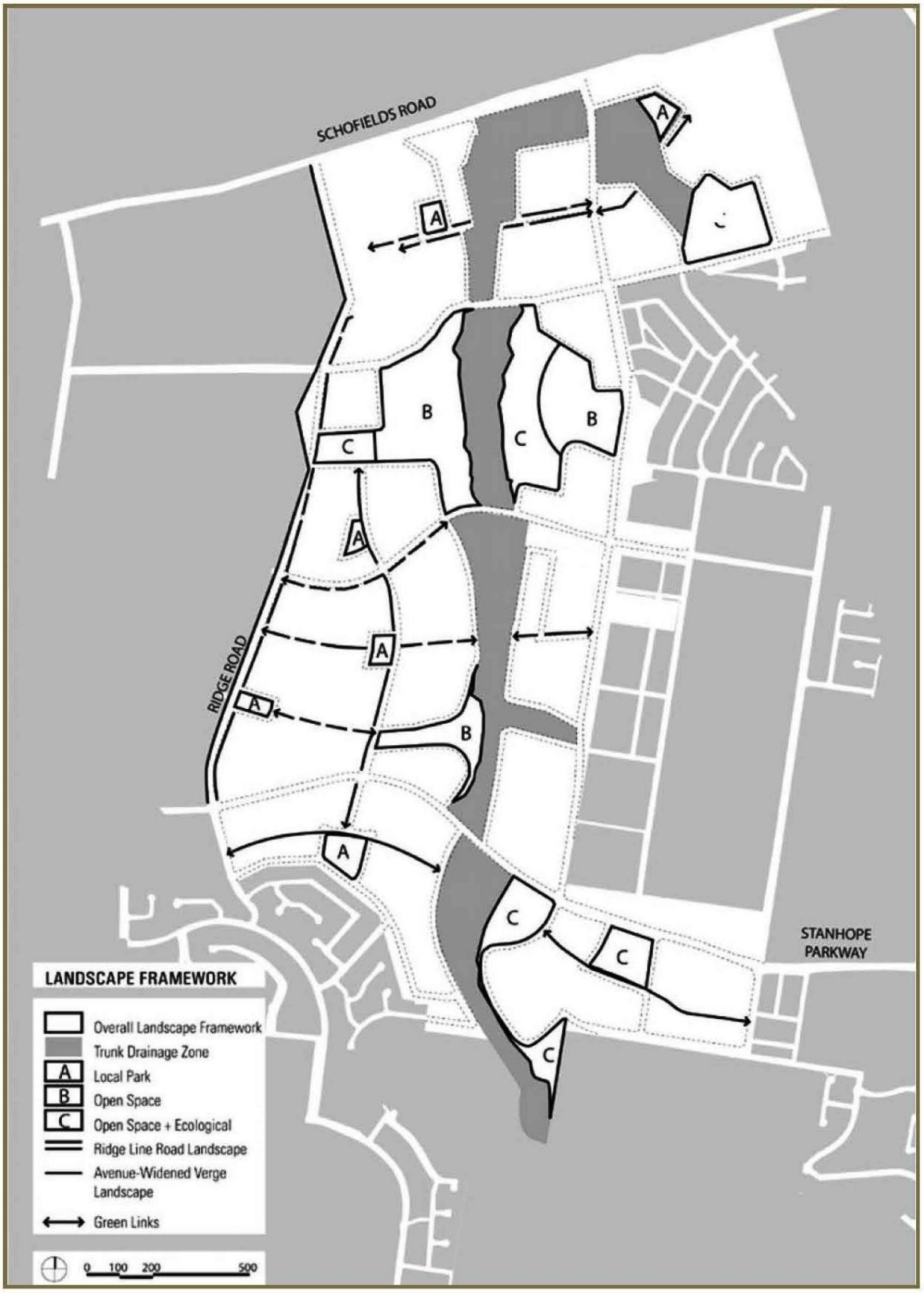


Figure 3.3 Open space and conservation areas

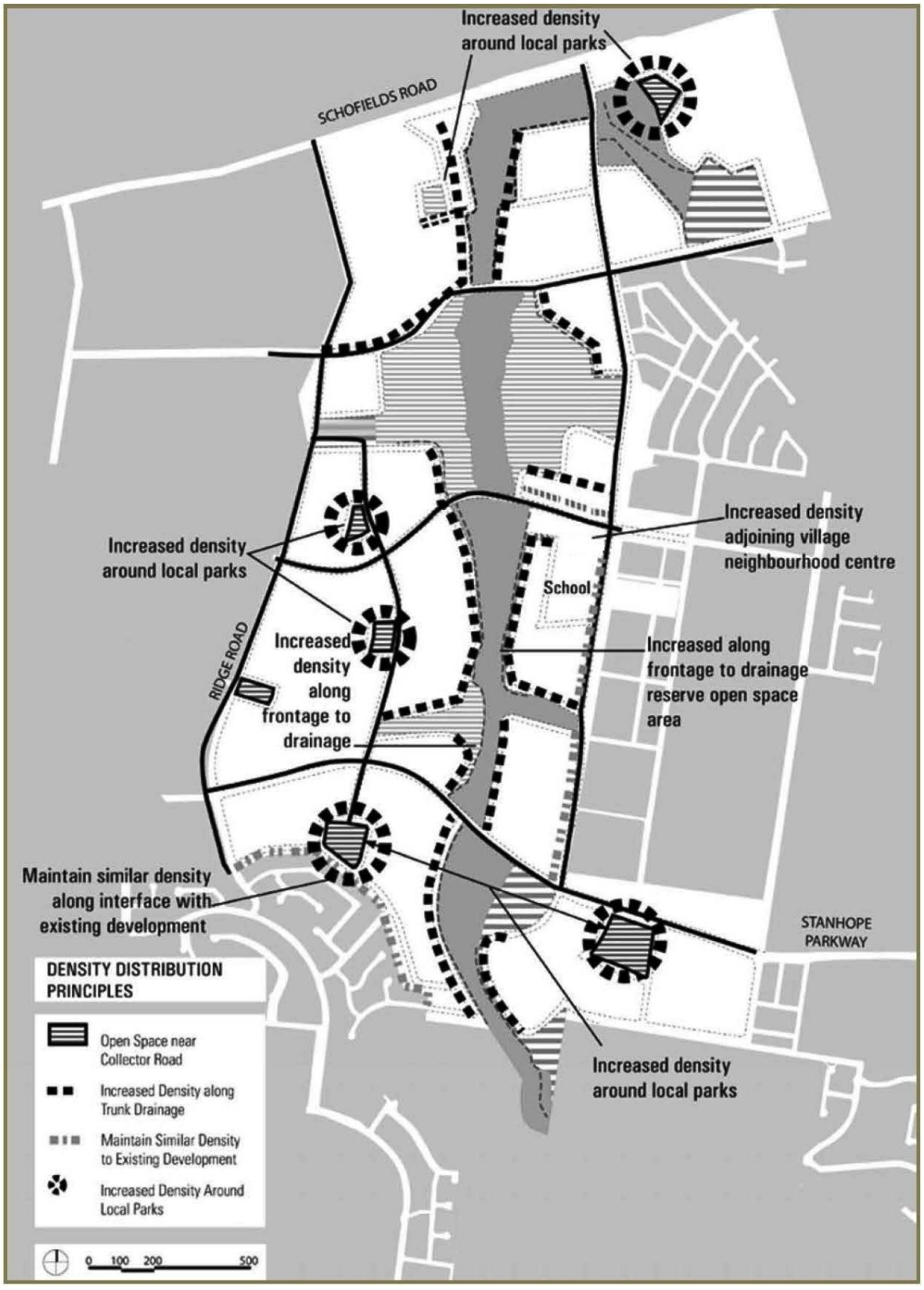


Figure 3.4 Residential density distribution

3.2 Circulation network

3.2.1 Site access and linkages

- **Objective**

  Provide linkages that create connections within the site and to adjoining places.

- **Controls**

  (a) Site access and provision for future linkages are to be provided as indicated on Figure 3.5 Access and linkages plan

  (b) Access is to be provided to the existing development at Quakers Hill and Stanhope Gardens, as well as future development areas to the east and west as indicated on Figure 3.5.

3.2.2 Streets

The hierarchy of roads, streets and paths collectively constitute the overall circulation system for the site and accommodate vehicular and pedestrian traffic into and throughout the development.

The selection of plant and hardscape materials for the circulation system will be based on aesthetic, practical and safety considerations. Variation in the landscape character will be created through differing plant species and layout (refer to Appendix 2).

The road hierarchy (refer to Figure 3.6) has been devised to comply with a design environment appropriate to road function and to facilitate a safe environment for all users. In accordance with the road hierarchy, the streetscape character types listed in Table 3.2 have been defined reflecting their function and proposed streetscape.

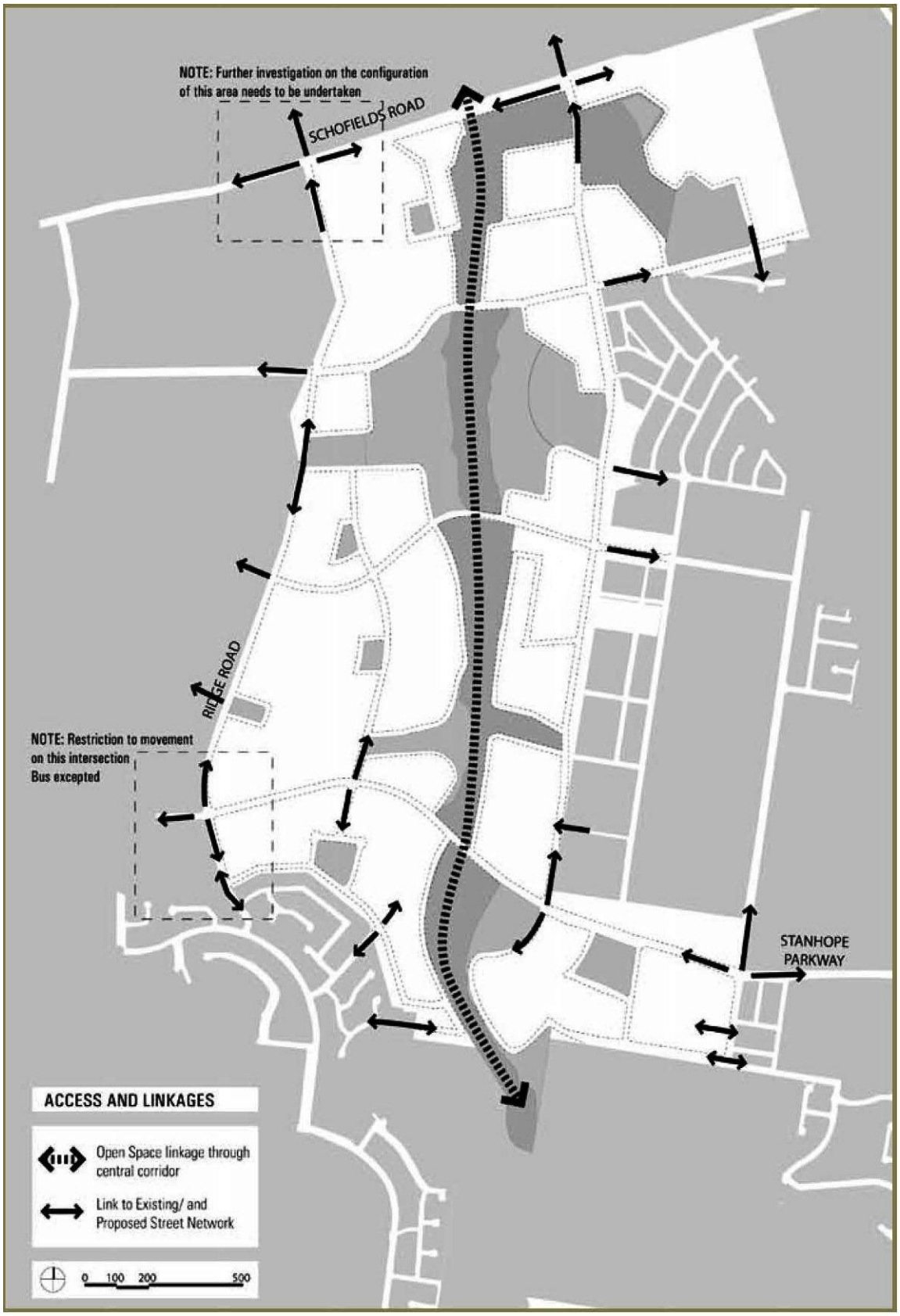


Figure 3.5 Access and linkages plan

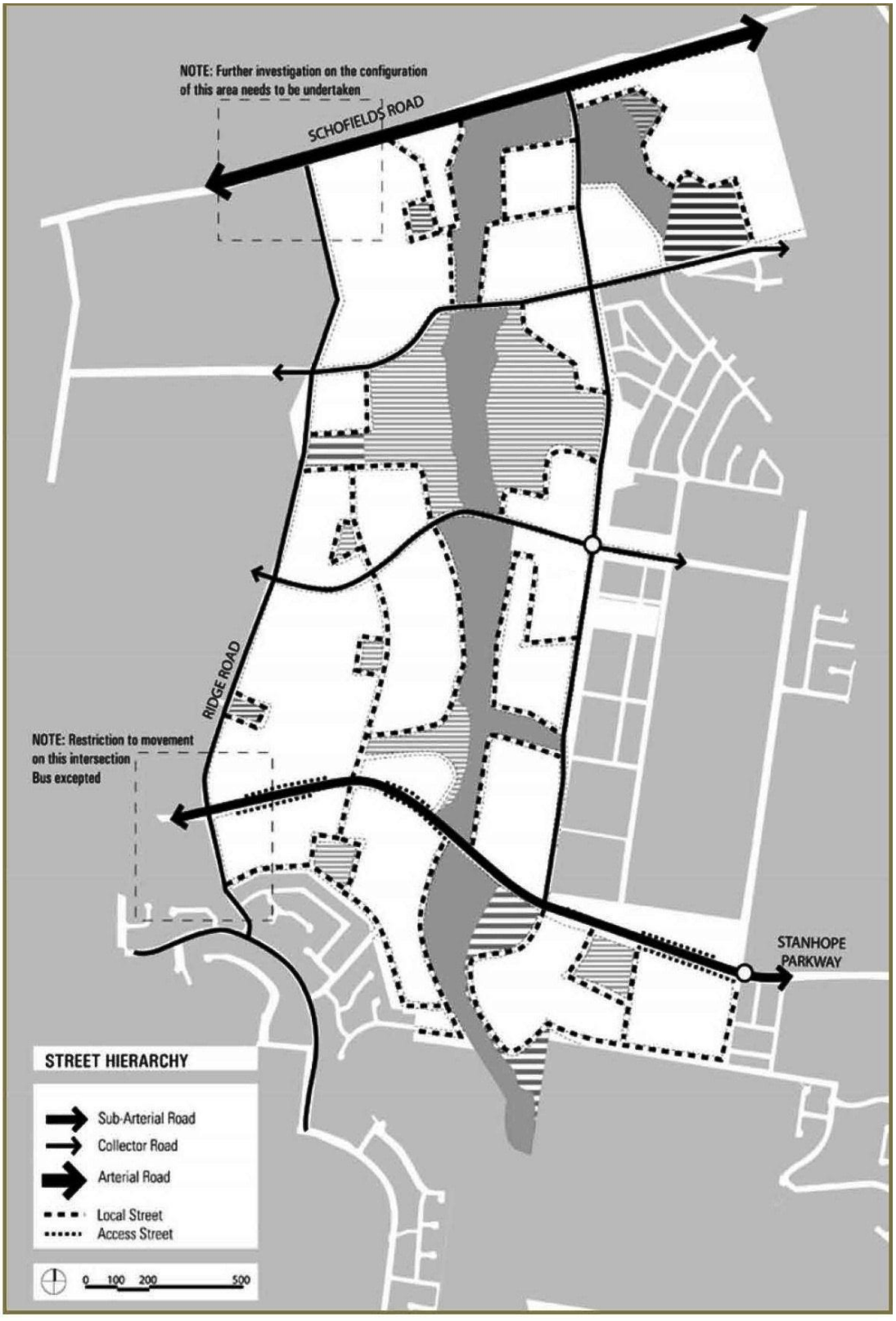


Figure 3.6 Street hierarchy plan

3.2.3 Street character

- **Objectives**

  (a) Provide acceptable levels of access, safety and convenience to all users ensuring acceptable levels of amenity

  (b) Make adequate provision for bus services to service the site

  (c) Provide a legible, safe and convenient network of "all weather" pathways for pedestrian and cyclists, including users with disabilities and limited mobility in accordance with the provisions of the *Disability Discrimination Act 1992*

  (d) Cater for the integrated provision of landscaping, public utilities and drainage.

- **Controls**

  (a) The road and street hierarchy is to conform with that shown on tables 3.1 and 3.2 and figures 3.6 to 3.10 inclusive

  (b) No direct vehicular access, except at controlled intersections, will be permitted to arterial or sub-arterial roads

  (c) Corner lots are to have a minimum 5m splay kerb return with a minimum 8.5m radius.

Road type	Minimum carriageway width (m)	Minimum verge width (m) each side	Minimum road reserve (m)	Minimum footpath required (m)
Collector roads	**11m**	**4.5m**	**20m**	**1.5m (2.5m including cycleway)**
Local streets	**9m**	**3.5m, with 1.8m adjacent to a reserve**	**16m**	**1.2m - 1.5m**
Access street*	**5.6m**	**3.5m**	**13.1m**	**1.2m**
Private driveways	**5.0m****	**1.5m**	**8m (not dedicated)**	**nil*****

Table 3.1 Road carriageway and reserve widths

*** For a maximum length of 80m**
**** Up to 15 dwellings**
***** Except where street connects to an adjoining street**

	Street type	Streetscape character	Criteria
1	Sub-arterial road	Wide leafy 'Parkway' avenue with a central planted median	Formal median and verge planting
2	Collector road	Wide residential street with leafy, parkway character, trees should be large, in scale with the road and its environment	Formal avenue tree planting in verge
3	Local streets	Planted with a variety of less formal evergreen canopy tree species, designed to make them more individual and intimate	Treed avenues in alternate staggered arrangements
3a	Local street with greenway adjacent to road edge	Equivalent to the local street with verge incorporating bio-swales, detention zones and permeable zones	Continuous informal / staggered canopy tree planting. Informal tree planting of Indigenous riparian vegetation with open canopy on one side of the road
4	Access street	Regular spaced, closed canopies	Canopy tree planting
5	Private driveway	Plant as a traditional 'driveway'	Include planting to the entryway verge and one tree minimum

Table 3.2 Street character

3.2.4 Street intersections

- **Objectives**

  (a) Ensure a hierarchy of intersections consistent with the street hierarchy
  (b) Facilitate safe vehicle and pedestrian crossings.

- **Controls**

  (a) A traffic management plan showing intersection controls is to be submitted with the first subdivision application for council approval

  (b) All 4-way intersections are to comply with the traffic management plan.

3.2.5 Public transport

- **Objectives**

  (a) Facilitate the provision of a future efficient bus service

  (b) Provide bus stops at appropriate intervals and in locations determined in consultation with the service providers and council.

- **Controls**

  (a) At least 90% of all dwellings are to be within 400m safe walking distance from a future bus route

  (b) The pedestrian routes and their road crossings are to be located conveniently to designated bus stops.

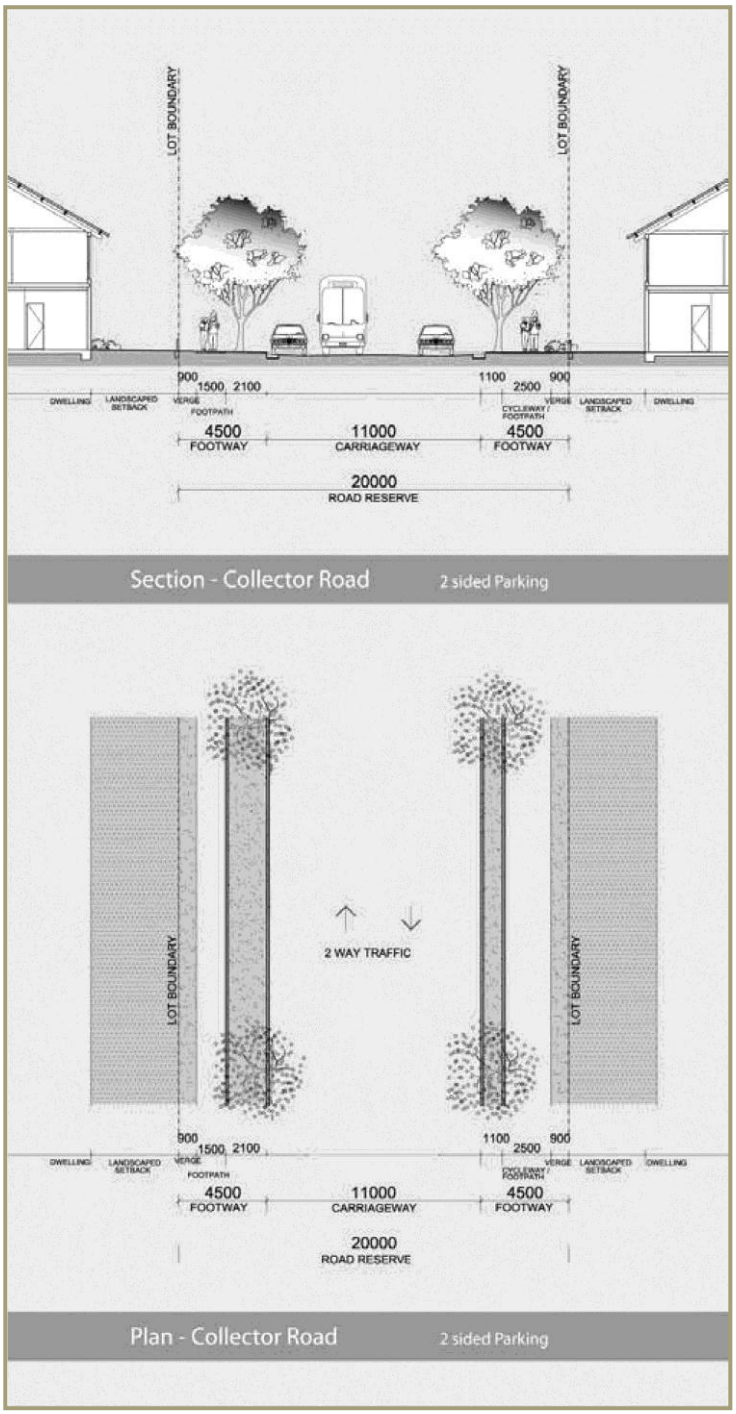


Figure 3.7 Typical collector road

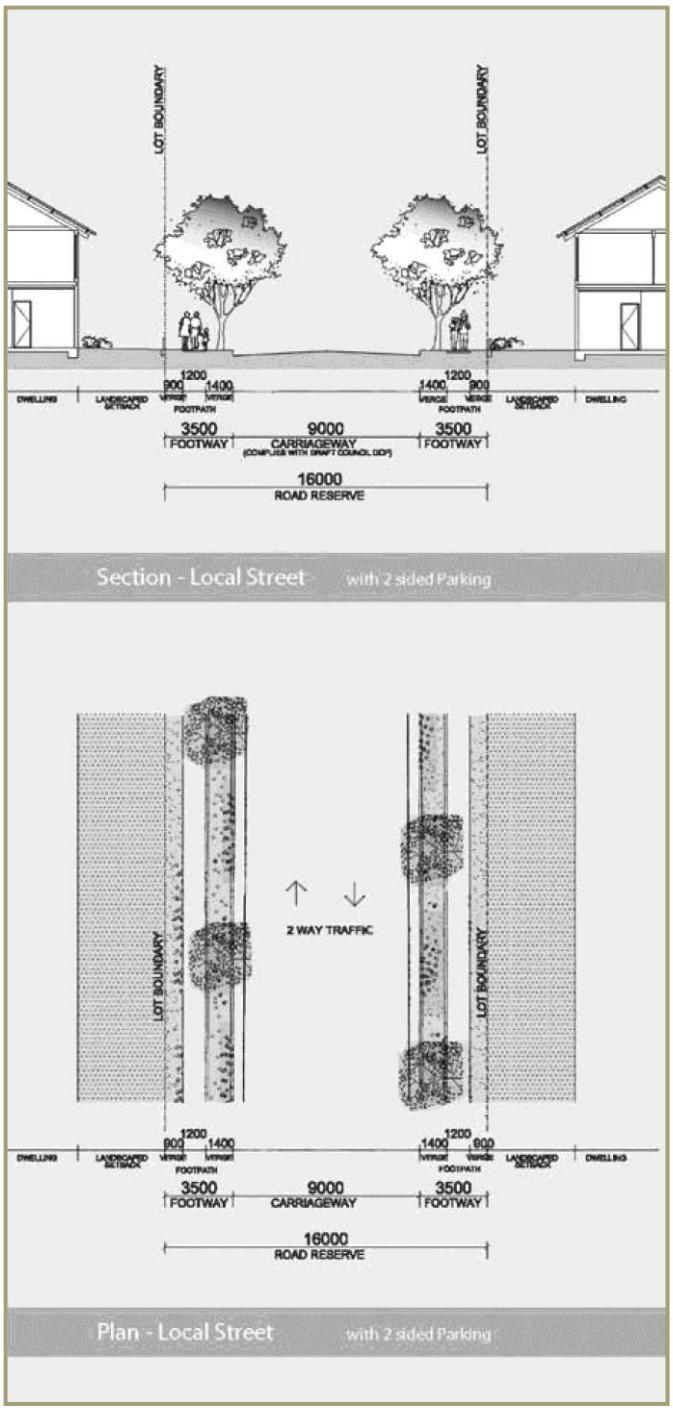


Figure 3.8 Typical local street

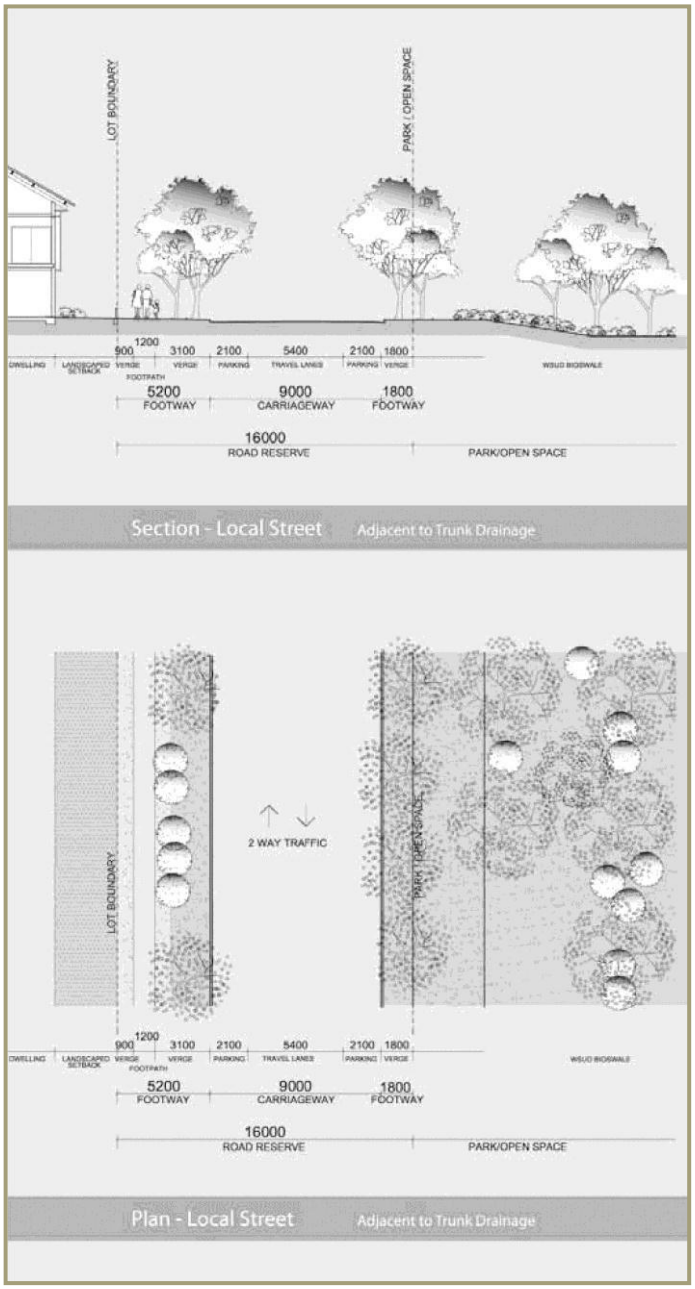


Figure 3.9 Typical local street adjacent to trunk drainage

3.2.6 Pedestrian and cycle network

- **Objectives**

  (a) Provide a network of pedestrian and cycle linkages to allow residents easy and safe access to the main open space and other public amenity features of the site, including access to public transport

  (b) Provide an all-weather pedestrian network of suitable material, width and design that can link into existing or possible future pedestrian networks

  (c) Provide legible and convenient pedestrian and cycleway connections that link existing and new neighbourhoods and connect open spaces.

- **Controls**

  (a) Provide on-grade pedestrian and cyclist crossings at stanhope parkway to future developments

  (b) Pedestrian and cycle links are to be generally provided as indicated on figure 3.10 pedestrian and cycle network

  (c) For reasons of safety, significant pedestrian links across sub-arterial routes should be at signalised intersections

  (d) Road crossings are to be located where there is adequate sight distance and suitable lighting provided at road crossings

  (e) Cycleways to be built in accordance with council specifications

  (f) Provide off-road cycle paths within open space areas, and parallel to stanhope parkway and schofields road.

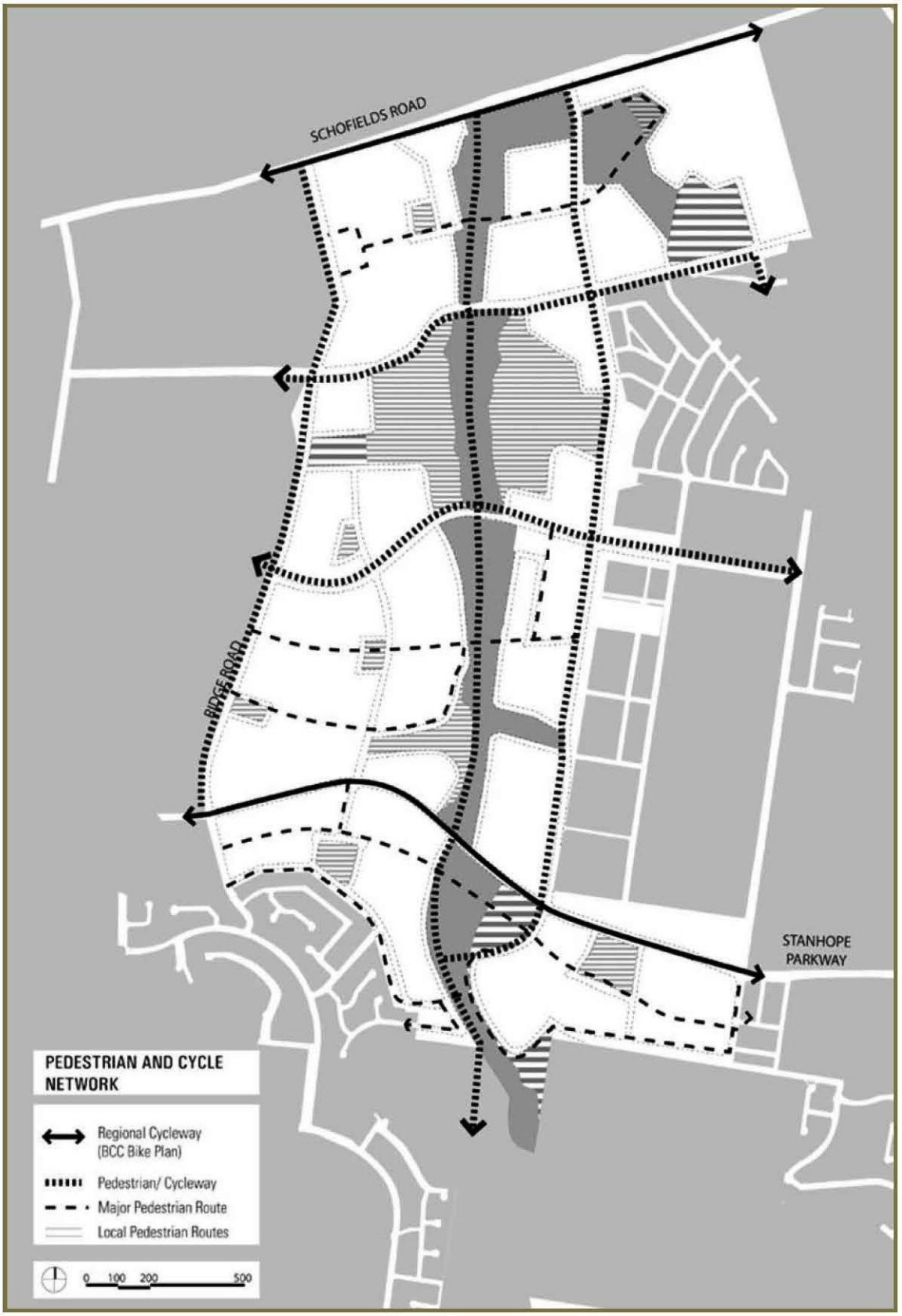


Figure 3.10 **Pedestrian and cycle network**

4 Site planning

The following sections set out the objectives and development controls that relate to site planning and the subdivision development of the site.

4.1 Land capability – salinity and sodicity

- **Objective**

  Manage and mitigate the impacts of, and on, salinity and sodicity.

- **Controls**

  (a) The adopted Salinity Management Plan is to be complied with

  (b) Salinity shall be considered during earthworks, rehabilitation works and during the siting, design and construction of infrastructure from salinity damage, to minimise the potential impacts the infrastructure may have on salinity

  (c) The soil type of each lot is to be sampled, tested and classified for soil salinity, sodicity and aggressivity

  (d) An appropriately qualified consultant is to oversee and monitor the bulk earthworks

  (e) An appropriately qualified consultant is to certify that the subdivision has been completed in accordance with the requirements of the adopted Salinity Management Plan prior to the release of a subdivision certificate. The consultant is to verify that the land is appropriate for the proposed development having regard to, but not limited to, salinity, sodicity, erodability and acid sulphate soils

  (f) Any works within the central woodland corridor are to comply with the requirements of the Salinity Management Plan

  (g) Salinity and sodicity management is to complement WSUD strategies, improving or at least maintaining the current condition, without detriment to the waterway environment

  (h) Building works are to comply with the requirements of the adopted Salinity Management Plan

  (i) The DCP be reviewed as necessary to ensure that best practice salinity and sodicity techniques have been incorporated.

4.2 Aboriginal heritage

- **Objectives**

  (a) Manage the Aboriginal heritage values of the site to ensure that the conservation outcome is enduring

  (b) Ensure areas identified as archaeologically significant are managed appropriately.

- **Controls**

  (a) Management of Aboriginal heritage on the site must generally comply with the recommendations contained within the Jo mcdonald Cultural Heritage Archaeological Report (May 2005)

  (b) Development Applications must identify any areas of Aboriginal heritage value that are within or adjoining the DA area, including any areas within the development site that are to be retained and protected (and identify the management protocols for these)

  (c) Developments that will impact on Aboriginal heritage will require consent from the Office of Environment and Heritage (OEH) under the *National Parks and Wildlife Act 1974* and consultation with the relevant Aboriginal communities

  (d) A Plan of Management must be produced and submitted to Council to ensure that all sites identified are managed appropriately for their cultural heritage values

  (e) The Plan of Management must be submitted to Council concurrently with applications for development

  (f) Where the necessary consents have already been obtained from the OEH, the DA must demonstrate that the development will be undertaken in accordance with any requirements of that consent.

4.3 Contamination

- **Objectives**

  (a) Minimise the risks to human health and the environment from the development of potentially contaminated land

  (b) Ensure that potential site contamination issues are adequately addressed at the subdivision stage.

- **Control**

  Comply with Part I (Contaminated Land Guidelines) of Blacktown DCP 2015.

4.4 Cut and fill

- **Objective**

  Manage and mitigate the impacts of cut and fill throughout the site.

- **Controls**

  (a) Cut and fill on the site is to be minimised

  (b) Comply with Council's requirements for cut and fill (refer to Part A of Blacktown DCP 2015).

4.5 Flora and fauna

- **Objective**

  Manage the flora and fauna of the site to ensure that the conservation outcome is enduring.

- **Controls**

  (a) Comply with the provisions of the *Threatened Species Conservation Act 1995*

  (b) A tree survey is to be submitted with each subdivision DA.

5 Housing

5.1 Introduction

The pattern, scale and types of dwellings are important elements in creating a successful residential community.

The following section sets out the objectives and development controls that relate to the design and development of dwelling houses, dual occupancies, attached dwellings, multi dwelling housing and detached studios. Refer to Figures 5.1 and 5.2 which indicate streetscape principles.

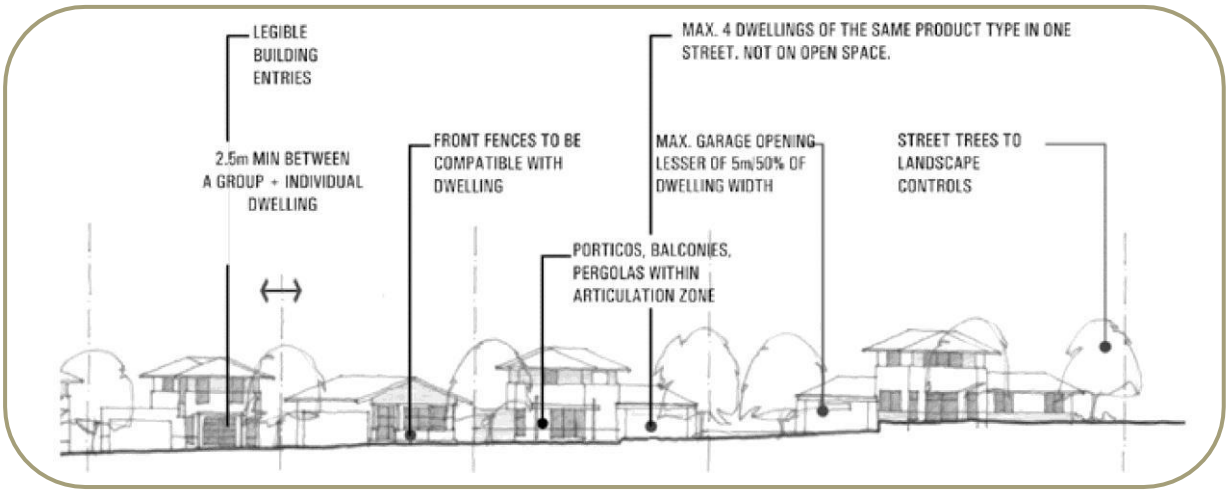


Figure 5.1 Streetscape planning principles – typical block (typical street)

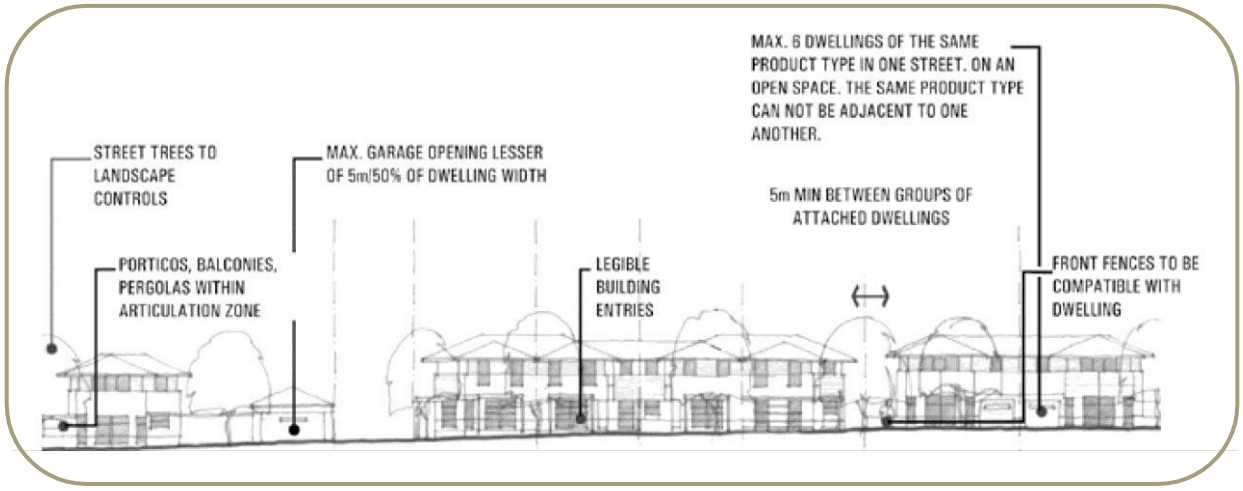


Figure 5.2 Streetscape planning principles – typical block (facing open space)

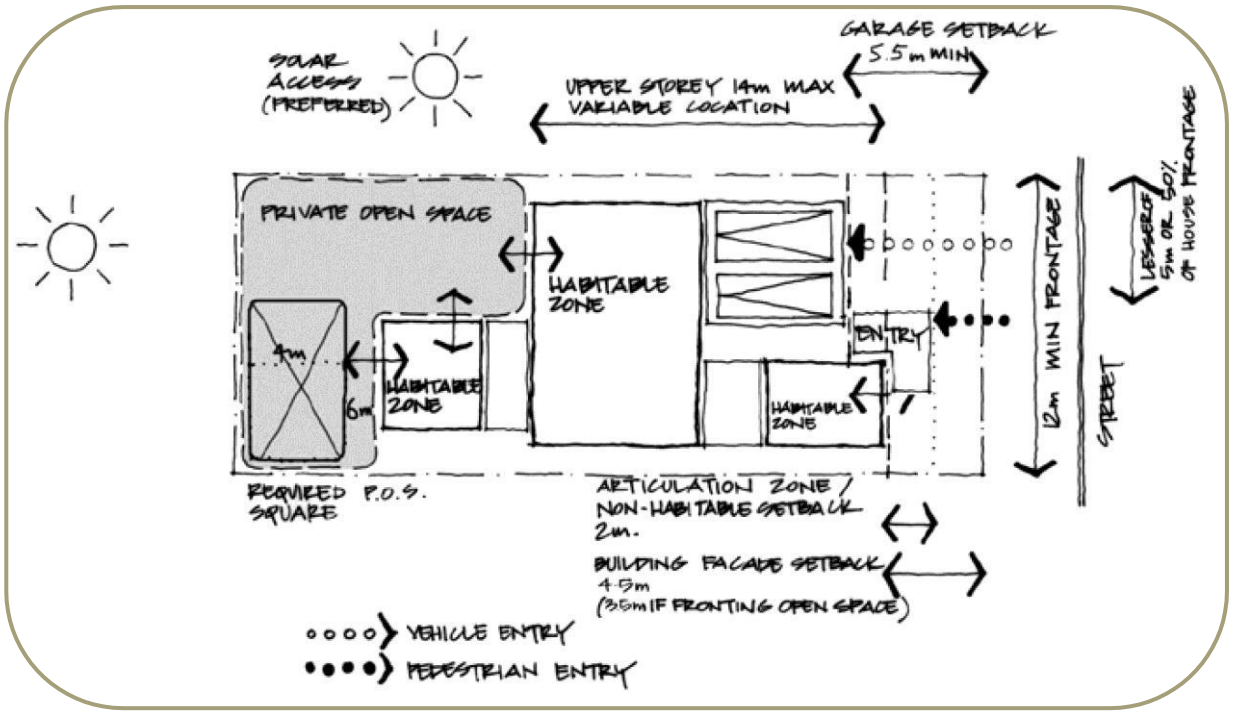


Figure 5.3 Acceptable orientation

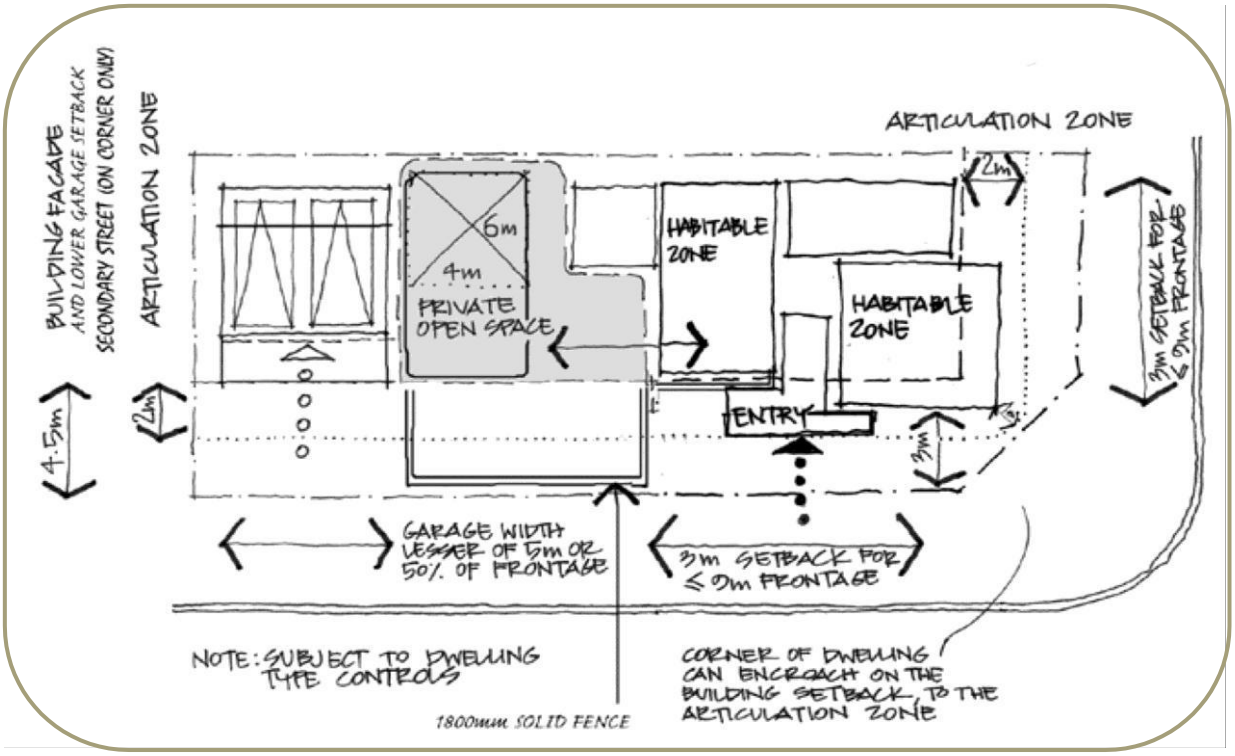


Figure 5.4 Acceptable orientation – corner allotment

5.2 Dwelling houses

Under Blacktown LEP 2015 *"dwelling house"* means a building containing only one dwelling.



Figure 5.5 Minimum setback controls for dwelling houses

Control	Requirements
Minimum frontage width	12m
Minimum lot depth	20m
Private open space (POS)	80sq.m - 1, 2 or 3 bedrooms 100sq.m - 4 bedrooms or more Generally to be located at the side or rear of dwelling
Minimum width of POS	2.5m - directly accessible from living areas
Minimum dimension of principal POS	4m x 6m
Setbacks (min/m): • Primary frontage (building) • Primary frontage (garage) • Fronting open space • Side and rear (main dwelling) • Side and rear (garage) • Corner lots (secondary street frontage)	 4.5m - building facade 2m - articulation zone (minor architectural features) 5.5m - garage door 3.5m - building facade 900mm - single storey 1.5m - two storey Zero 3m - for a max length of 9m 4m - along both street frontages for length of frontage beyond 9m 3m - where frontage is to open space
Maximum building height	9m in accordance with Clause 4.3 of Blacktown LEP 2015
Maximum building depth of second storey component	14m
Maximum height of carport	3.5m
Car parking spaces	2 - at least one space needs to be covered
Garage minimum internal dimension	Single - 5.5m x 3.0m Double - 5.5m x 5.5m
Maximum carport and garage door width	Not more than 5m wide or 50% of the dwelling width whichever is the lesser
Floor level above the 1:100 year flood level	500mm

Table 5.1 Development controls for dwelling houses

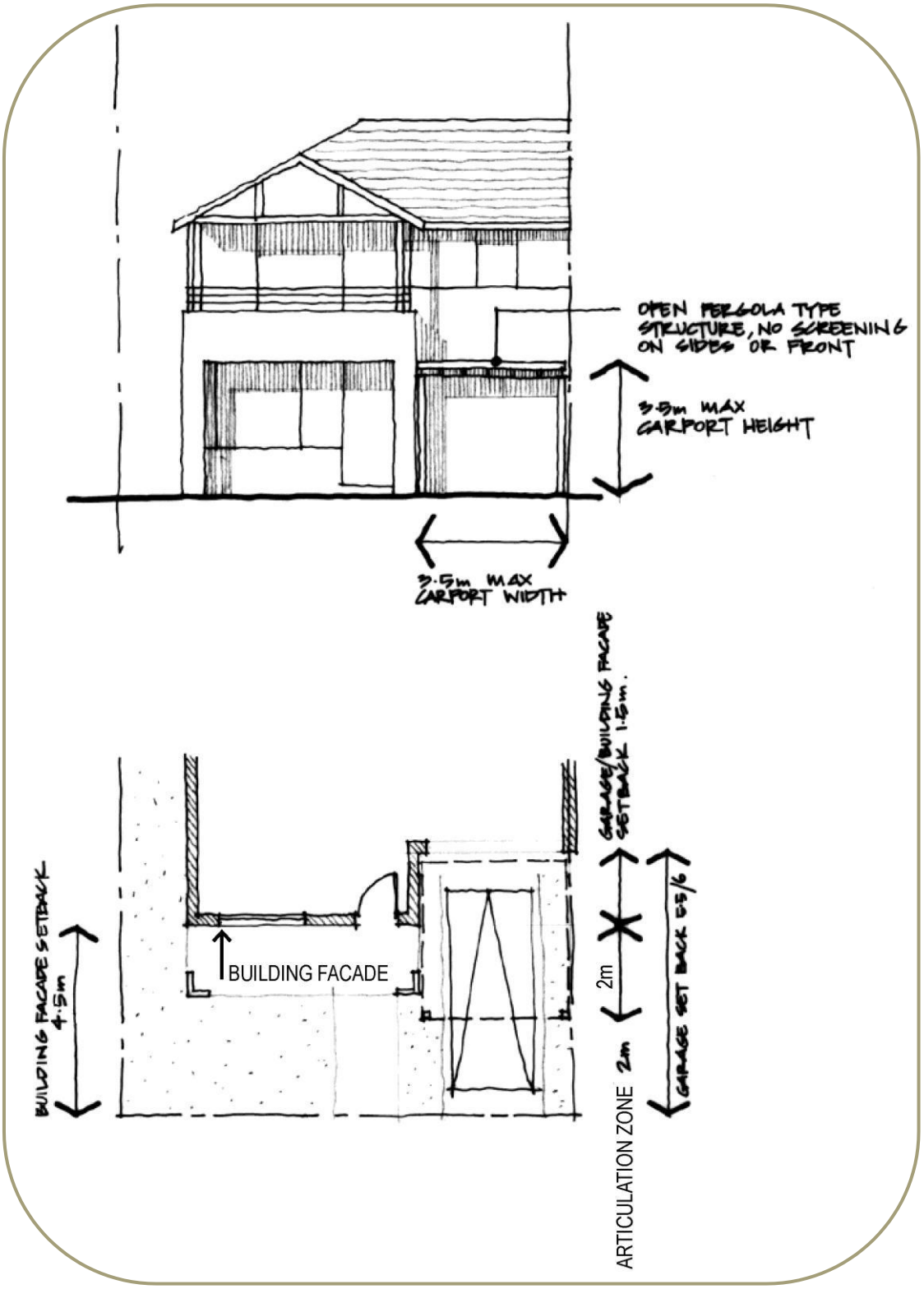


Figure 5.6 Carport controls

5.3 Dual occupancies

5.3.1 Definitions

The definitions below reflect the provisions of Blacktown LEP 2015.

Dual occupancy means a dual occupancy (attached) or a dual occupancy (detached).

Dual occupancy (attached) means 2 dwellings on one lot of land that are attached to each other, but does not include a secondary dwelling.

Dual occupancy (detached) means 2 detached dwellings on one lot of land, but does not include a secondary dwelling.

Dwelling means a room or suite of rooms occupied or used or so constructed or adapted as to be capable of being occupied or used as a separate domicile.

Secondary dwelling means a self-contained dwelling that:
(a) Is established in conjunction with another dwelling (the principal dwelling), and
(b) Is on the same lot of land as the principal dwelling, and
(c) Is located within, or is attached to, or is separate from, the principal dwelling.

5.3.2 Subdivision of dual occupancies

Under Clause 4.1C of Blacktown LEP 2015, the subdivision of dual occupancies is generally prohibited, except in the case of detached dual occupancies where the following both apply:

(a) The frontage of each dwelling comprising the dual occupancy faces a differently named street
(b) The size of each lot resulting from the subdivision is not less than 300sq.m.

It is noted that nothing in Blacktown LEP 2015 prevents the subdivision of a detached dual occupancy development if the 2 resultant lots meet the minimum allotment size specified in Clause 4.1 of the LEP.

Control	Requirement
Minimum lot depth	20m
Private open space (POS)	80sq.m for each dwelling - 1, 2 or 3 bedroom dwellings 100sq.m for each dwelling - 4 bedroom dwellings
Minimum dimension of principal POS	4m x 6m - directly accessible from living areas
Minimum width of POS	2.5m
Setbacks (minimum/metre): • Primary frontage (building) • Primary frontage (garage) • Fronting open space • Side and rear (main dwelling) • Side and rear (garage) • Corner lots (secondary street frontage)	 4.5m - building facade, 2m - articulation zone (minor architectural feature) 5.5m - garage door 3.5m - building facade 1m - single storey 1.5m - 2 storey Zero - for maximum length of 10m and internalised within development 3m - for maximum length of 9m on the secondary street frontage 4m - along both street frontages for length of frontage beyond 9m 3m - along both street frontages for length of frontage beyond 9m where frontage is to public or community open space
Easement for zero lot line	1m - single storey 1.5m - two storey
Maximum number of storeys	2, developments must comply with Clause 4.3 of Blacktown LEP 2015
Maximum building depth for any second storey component	14m
Maximum height of carport	3.5m
Resident car parking spaces	1 per dwelling - 1 or 2 bedrooms 2 per dwelling - 3 or more bedrooms
Visitor car parking	Visitor parking can be stacked in driveway where garage spaces are provided. Otherwise 1 visitor space to serve both dwellings is to be provided off the driveway
Garage and parking space minimum dimensions	Covered - 3m width, 5.5m length Uncovered - 2.5m width, 5.2m length
Floor level above the 1:100 year flood level	500mm
Maximum carport and garage door width	Not more than 5m wide or 50% of the dwelling width, whichever is lesser

Table 5.2 Development controls for dual occupancy housing

5.4 Attached dwellings and multi dwelling housing

5.4.1 Definition

Attached dwelling means a building containing 3 or more dwellings, where:
(a) Each dwelling is attached to another dwelling by a common wall, and
(b) Each of the dwellings is on its own lot of land, and
(c) None of the dwellings is located above any part of another dwelling.

Multi dwelling housing means 3 or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.

5.4.2 Development controls for attached dwellings and multi dwelling housing

Control	Requirement
Minimum frontage width	26m - Applications proposing the development of irregular shaped sites will be treated on their merits in terms of their compliance within the spirit of the site requirements below
Maximum depth	No greater than 2.75 times the width of the site On sites approaching the max allowable depth ratio, Council may require buildings to be offset one from the other to create a development that is aesthetically pleasing
Maximum number of attached dwellings in one group	4 6 when opposite public or community open space
Minimum gap between group of attached dwellings comprising 2 or more dwellings per group	5m
Minimum gap between group of attached dwellings and a detached dwelling	2.5m
Maximum number of dwellings of same facade type in a single street block	4
Private open space (POS) Minimum dimension of principal POS Minimum width of POS	50sq.m - 1 bedroom 60sq.m - 2 bedrooms 70sq.m - 3 or more bedrooms Generally to be located at the side or rear of dwelling 6m x 4m - directly accessible from living areas 2.5m

Control	Requirement
Setbacks (minimum/metre):	
• Primary frontage (building)	4.5m - building facade 2m articulation zone (minor architectural feature)
• Primary frontage (garage)	5.5m - garage door
• Fronting open space	3.5m - building façade
• Side and rear	1m - single storey 1.5m - two storey
• Side and rear (garages)	Zero - for a max length of 10m and internalised within development
• Corner lots (secondary street frontage)	3m - for a max length of 9m on the secondary street façade 4m - along both street frontages for length of frontages beyond 9m 3m - along both street frontages for length of frontage beyond 9m where frontage is to open space
Easment for zero lot line	1m - single storey 1.5m - two storey
Minimum gap between groups of attached buildings	5m
Maximum number of storeys	2 (excludes attic), developments must comply with Clause 4.3 of Blacktown LEP 2015
Maximum building depth of any second storey component	14m
Maximum carport and garage door width	Not more than 5m wide or 50% of the dwelling width whichever is the lesser
Car parking spaces	1 per dwelling - 1 and 2 bedrooms 2 per dwelling - 3 bedrooms or more
Visitor car parking	1 space per 2.5 dwellings
Floor level above the 1:100 year flood level	500mm
Garage and parking space, minimum dimension	Covered - 3m width, 5.5m length Uncovered - 2.5m width, 5.2m length

Table 5.3 Development controls for attached dwellings and multi dwelling housing

5.5 Common issues

5.5.1 External appearance

■ **Objectives**

(a) Enhance the streetscape amenity and residential character of the site

(b) Create a high standard of architectural design for both individual dwellings and groups of dwellings

(c) Consider proportions in the design of building elevations

(d) Reinforce significant street intersections, particularly in open space and other key strategic areas, through articulation of corner buildings.



1. Varied roofscape to break up buiding mass
2. Articulate facade with materials and detailing
3. Facade modulation by variations in setbacks
4. Roofpitch between 20 degrees and 40 degrees or designed as a skillion or flat roof
5. Articulate proportion of opening and windows type
6. Articulate facade with balconies, verandahs, pergolas and sun shading
7. Living area windows directed to street or private open space
8. Legible building entry

Figure 5.7 Architectural treatment of dwelling facades

■ **Controls (Figure 5.7)**

(a) Articulate the building façade using:

(i) Variations in setbacks
(ii) Materials and detailing
(iii) Building entrances
(iv) Balcony and other elements
(v) Shutters, awnings and louvres
(vi) Attention to proportion of openings, window type and size

(b) Corner buildings should be articulated by addressing both street frontages, with corner elements such as verandahs, pergolas and attic storey

(c) Windows to living area should be directed either to the street or rear private open space (and private driveway) to provide visual surveillance to the street and other open space areas

(d) Generally no bathrooms, ensuite or laundry window to face a public road.

(e) Building entries are to be clearly visible from the street

(f) Modulation of the façade should be integral to the design of the building, not 'stuck on'

(g) Attention to both the building base and roof is required. Roofs are to be either pitched between 20 and 40 degrees with simple forms that avoid small pieces of roof with messy flashing details, or designed as a flat or skillion roof

(h) Communication devices, including antennae, satellite dishes and similar elements are not to be visible from the street

(i) An upper storey eave overhang of at least 450mm is required, except on party walls and zero lot line walls

(j) Lightweight material such as boarded cladding may be used to add interest to the façade. Materials such as fibre cement cladding is to be rendered with either a reveal joint or no joints

(k) Carports and garages should be constructed of materials that complement the colour and finishes of the main dwelling.

5.5.2 Safety – Crime prevention through environmental design (CPTED) requirements

- **Objective**

  Enhance safety, maximise surveillance and minimise opportunities for crime.

- **Controls**

  (a) Building entries to be clearly visible from the street. They are not to be obscured by carports or other elements. A covered entry is encouraged. Entries are to be adequately lit

  (b) Where garages are located behind dwellings in car courts with private driveway access, measures must be taken to minimise opportunities for crime

  (c) Provide lighting both to streets and private driveways sufficient for surveillance.

5.5.3 Privacy

- **Objective**

  Ensure that buildings are designed and sited to provide privacy between neighbours and between building occupants and the public.

- **Controls**

  (a) Windows to upper storeys to be located on front or rear facades where possible

  (b) Second storey windows to living areas that face directly to windows, balconies or private open space of adjoining properties to be offset

(c) First floor balconies or living room windows not permitted to directly overlook private open space of adjoining dwellings unless suitable screening is provided

(d) Maintain adequate privacy between studio accommodation located on private driveways.

5.5.4 Solar access

- **Objective**

  Maximise solar access to private open space and living areas of dwellings.

- **Controls**

  (a) Areas of private open space should achieve at least 3 hours of sunlight to 50% of the required private open space between 9am and 3pm on 21 June

  (b) Dwellings to be designed to avoid unreasonable overshadowing of adjacent properties. Buildings should be designed to ensure that 50% of the on-site private open space area of adjoining sites receive a minimum of 3 hours of sunlight between 9.00am and 3.00pm on 21 June

  (c) An application proposing a 2 storey dwelling must include shadow diagrams showing the impact of the proposal on the site and adjoining site between 9am and 3pm on 21 June.

5.5.5 Landscaping

- **Objectives**

  (a) Maximising microclimate benefits to residential lots

  (b) Enhance streetscape amenity

  (c) Ensure planting success and continuity

  (d) Minimise requirements for irrigation and fertilisers.

- **Controls**

  (a) Indigenous species to make up a large percentage of the plant material mix

  (b) Plant species to be predominantly selected from the schedule at appendix 2

  (c) A landscaping plan to be submitted for all development other than single dwelling houses.

5.5.6 Fencing

- **Objectives**

  (a) Ensure front fences contribute to the streetscape and create a clear distinction between the public and private domain

(b) Ensure that rear and side fencing will assist in providing privacy to open space areas

(c) Ensure that fence height, location and design will not affect traffic and pedestrian visibility at intersections.

- **Controls**

(a) Fences to the street frontage are to be a maximum of 0.9m in height except for corner lots

(b) Fences to corner lots are to be a maximum 0.9m high on the primary street frontage and on the secondary street frontage to a point 4m from the dwelling frontage where it may then increase to 1.8m in height

(c) Side and rear boundary fencing constructed behind the building alignment setback should be a maximum 1.8m high and constructed of materials to complement the design of the dwelling. Metal sheeting is not permitted

(d) Front fences may be of solid construction to a maximum height of 0.6m. The balance of the fence is to have a minimum opening ratio of 50%. Metal sheeting is not permitted

(e) Retaining walls visible to a public place are to be masonry

(f) Courtyard retaining walls will require fencing to be positioned on top of the retaining wall.

5.5.7 Water efficiency

- **Objective**

Minimise water consumption in accordance with State Government requirements.

- **Control**

The provisions of BASIX will apply with regard to water requirements.

5.5.8 Energy efficiency

- **Objective**

Minimise energy usage and greenhouse emissions.

- **Controls**

(a) The provisions of BASIX will apply with regard to energy requirements

(b) Maximise cross flow ventilation in all dwelling designs

(c) Incorporate outdoor clothes line and drying areas into all dwellings.

5.5.9 Services

- **Objective**

Ensure that services are not visually intrusive.

- **Controls**

  (a) Should an electrical substation (located within the site area or on the street frontage of the site) be necessary, the requirements of both Council and Integral Energy shall be met

  (b) All electrical reticulation within the site shall be underground

  (c) Provision shall be made to illuminate all common accessways and driveways to the satisfaction of Council. All common accessways shall be lit at the vehicular footway crossing by an approved means from dusk till dawn.

5.5.10 Materials selection

- **Objective**

  Select materials that minimise the use of non renewable resources.

- **Controls**

  (a) The selection of materials for pipe infrastructure, foundation and brickwork must have sulphate resistant properties to cope with the saline conditions

  (b) Specify, where possible, the use of recycled and renewable materials.

5.5.11 Salinity and sodicity

- **Objective**

  Manage and mitigate the impacts of, and on, salinity.

- **Control**

  Salinity shall be considered during the siting, design and construction of dwellings, including: drainage, vegetation type and location, foundation selection and cut and fill activities, to ensure the protection of the dwelling from salinity damage and to minimise the impacts that the development may have on the salinity process.

6 Commercial / community uses

- **Objectives**

  (a) Provide for retail and commercial development and associated parking to service The Ponds community in conjunction with higher density housing and community uses

  (b) Integrate the development with the adjoining land uses

  (c) Establish the community centre as the focal point for community identity and activity

  (d) Development to contribute to the creation of a distinctive main street character.

- **Controls**

  (a) Buildings to address the main street

  (b) Where Clause 4.3 (Height of Buildings) of Blacktown LEP 2015 does not apply, a maximum of 3 storeys in height applies.

  The ground floor is to provide retail/commercial uses only and/or commercial/ residential apartments above

  (c) A distinctive identifying architectural element to be provided

  (d) An unobstructed footway of 3.5m width to be maintained along the street frontage

  (e) Pedestrian linkages to be provided to the school and community uses

  (f) Parking to be generally located with access from the local street system

  (g) Parking rates for all development to comply with the parking provisions of Part A (Introduction and General Guidelines) of Blacktown DCP 2015

  (h) Private open space to be provided for each shop top dwelling in the form of a balcony:

  (i) 1 bed 8sq.m
  (ii) 2 bed 10sq.m
  (iii) 3 bed 12sq.m

  (i) The minimum depth of all balconies should be 2m.

7 Information to be submitted with a Development Application

Applicants are encouraged to use the services of architects, town planners, engineers, professional designers and other specialists as required to undertake the site analysis, design development and to prepare supporting documentation. Consultation with neighbours and Council before completing the proposal is highly recommended.

A Design Review Panel, independent of Council's development approval process, has been established by UrbanGrowth to review applications prior to lodgement with Council. The Design Review Panel excludes a parcel of land in the north-west corner being Lot 1 DP 124210.

The amount of information required for a Development or Construction Certificate Application will vary depending on the location, scale and complexity of the proposal, as well as whether the application relates to land subdivision or building construction. The following information, as relevant to the type of DA, must be submitted:

Application fees	As advised by Council
Application form	A completed document signed by the owner of the land or accompanied by the written authority of the owner to lodge the Application (including where appropriate the company seal or seal of the body corporate)
Architectural plans	Documents (3 copies) at a minimum scale of 1:200 showing: • dimensions and reduced levels of all floors, gutters (eaves) and ridge lines • detailed floor plans • all elevations and relevant sections
Notification plans	Documents (8 copies, A4 size) showing the location, height and external configuration of the proposed development
Site analysis	A document including a statement as to how the proposed development has addressed the site opportunities and constraints identified
Statement of Environmental Effects	A document (for all Development Applications) which: • explains how the project design has responded to the information contained in the site analysis • demonstrates that the intent of the criteria outlined in this Part have been satisfied

Survey or site plan	Plans at a scale of 1:200 showing: • site dimensions • changes of levels on the site related to a fixed datum point • existing vegetation, showing canopy spread of trees and ground levels at the base of the trunk • spot levels of street frontage including road gutter • easements for drainage and services affecting or benefiting the subject property
Salinity Management Plan	A plan detailing management and mitigation measures

Other information may also be required with the DA or as part of the Construction Certificate documentation, including:

Cut and fill plan	A plan with details of the exact depth and extent of excavation and filling on the site
Landscape plan	A plan showing the location of existing trees, indicating those that are to be retained and proposed landscaping of the completed development, indicating opportunities for providing native flora and fauna habitats
Exceptions to development standards	A written request from the applicant providing justification outlining why compliance with a particular development standard is unreasonable or unnecessary. Clause 4.6 (Exceptions to Development Standards) of Blacktown LEP 2015 should be referred to as a guide
Shadow diagrams	Diagrams for all 2 storey buildings or second storey additions in residential areas showing the effect of 9am, 12 noon and 3pm shadows during midwinter
Integrated water cycle management report	See Appendix 1 of Part J of Blacktown DCP 2015
Drainage plan	See Appendix 1 of Part J of Blacktown DCP 2015
Erosion and sediment control plan	See Appendix 2 of Part J of Blacktown DCP 2015
Species Impact Statement	A document where a "significant effect" is "likely" to be imposed upon "threatened species, populations or ecological communities, or their habitats", pursuant to Section 5A of the *Environmental Planning and Assessment Act 1979*
Waste Management Plan	Refer to Part G – Site Waste Management and Minimisation

Appendix 1 Definitions

A definition applying to terms used in this Part of Blacktown DCP 2015 will generally have the same meaning as ascribed to them as is set out in Part A (Introduction and General Guidelines) of Blacktown DCP 2015, and as is set out in Blacktown LEP 2015. Other definitions which are applicable in relation to this Part and related development are set out below.

Articulation zone means a 2m wide zone forward of the building facade that may include minor architectural features such as pergolas, bay windows, stair enclosures and verandahs.

Attic room means a room within the main roof space of a building that has a 1.5m minimum wall height at edge of the room, a minimum 30 degree ceiling slope and does not incorporate or access a balcony.

Built upon area means the area of the site containing the dwelling structure and any hard surface areas (unless permeable) but excludes paved landscape areas and courtyards.

Corner lot means an allotment, not being a battle-axe shaped allotment, having frontage to 2 or more intersecting, differently named roads.

***Design Review Panel*:**

(a) The Design Review Panel (DRP) consists of UrbanGrowth and/or Australand representatives, the estate Architect and a consultant Landscape Architect
(b) Once a purchaser has selected a house type, an application is to be submitted to the DRP
(c) A recommendation from the Panel is required prior to the DA submission to Blacktown City Council
(d) The recommendation from the DRP must be attached as part of the supporting documentation for Council's consideration, as part of any formal DA
(e) The Design Review Panel is independent of Council's development approval process.

Finished ground level means the finished ground level following any bulk earthworks required at subdivision development stage to create a land surface generally suitable for building.

Gross floor area means the sum of the floor area of each floor of a building measured from the internal face of external walls, or from the internal face of walls separating the building from any other building, measured at a height of 1.4 metres above the floor, and includes:

(a) The area of a mezzanine, and
(b) Habitable rooms in a basement or an attic, and
(c) Any shop, auditorium, cinema, and the like, in a basement or attic,

but excludes:

(d) Any area for common vertical circulation, such as lifts and stairs, and
(e) Any basement:
    (i) Storage, and
    (ii) Vehicular access, loading areas, garbage and services, and
(f) Plant rooms, lift towers and other areas used exclusively for mechanical services or ducting, and
(g) Car parking to meet any requirements of the consent authority (including access to that car parking), and

(h) Any space used for the loading or unloading of goods (including access to it), and
(i) Terraces and balconies with outer walls less than 1.4 metres high, and
(j) Voids above a floor at the level of a storey or storey above.

Landscaped area includes all permeable areas, paved courtyard areas and pathways but does not include any driveways.

Landscape plan means a plan prepared by the applicant that shall accompany the DA and sets out the general principles of embellishment to be undertaken in subsequent stages of the development of those areas where the developer intends to undertake the embellishment of open space.

Neighbourhood centre means a Local Centre containing a mix of retail, professional services and associated community uses.

Principal residence means a dwelling which has direct access to a public road or public open space and is not studio accommodation.

Private driveway means a shared driveway to a group of dwellings that does not require garbage truck access and is not a through road.

Significant building means a corner building or other building identified as being an important element within the streetscape.

Storage space includes any garage space in excess of the minimum dimensions for garages and also includes designated linen or other storage areas but not including wardrobes in bedrooms or kitchen storage cupboards.

Zero lot line houses means part of the dwelling wall which is built to the property boundary but has no common boundary wall with any adjoining dwelling.

Zipper lots means lots with at least one irregular side boundary and generally has a dwelling built to one boundary which has no common boundary wall with any adjoining dwelling.

Appendix 2 Recommended vegetation species

Scientific name	Common name	Mature height	Mature spread	Native
Trees				
Acer buergeranum	Trident Maple	**6m**	**3m**	**X**
Agonis flexuosa	Willow Myrtle	**14m**	**6m**	√
Angophora floribunda	Rough Barked Apple	**20m**	**6m**	√
Banksia integrifolia	Coastal Banksia	**20m**	**6m**	√
Casuarina glauca	Swamp She-Oak	**15m**	**5m**	√
Corymbia maculata	Spotted Gum	**30m**	**8m**	√
Eucalyptus amplifolia	Cabbage Gum	**30m**	**5m**	√
Eucalyptus crebra	Narrow Leafed Red Ironbark	**30m**	**8m**	√
Eucalyptus microcorys	Tallow-wood	**40m**	**8m**	√
Eucalyptus moluccana	Grey Box	**30m**	**8m**	√
Eucalyptus tereticornis	Forest Red Gum	**40m**	**4m**	√
Fraxinus 'Raywoodii'	Claret Ash	**20m**	**8m**	**X**
Jacaranda mimosilfolia	Jacaranda	**20m**	**8m**	**X**
Melaleuca linarifolia	Snow In Summer	**10m**	**4m**	√
Melaleuca nodosa	Ball Honeymyrtle	**4m**	**2.5m**	√
Melaleuca stypheloides	Prickly Paperbark	**10m**	**3m**	√
Melia azedarach	White Cedar	**15m**	**5m**	**X**
Sapium sebiferum	Chinese Tallow Tree	**7m**	**3m**	**X**
Shrubs				
Agapanthus orientalis	Agapanthus	**0.75m**	**0.4m**	**X**
Acemena smithii 'Hedge Master'	Lilly Pilly	**2m**	**1m**	√
Anigozanthos flavidus	Tall Kangaroo Paw	**2m**	**1m**	√
Banksia spinulosa	Hairpin Banksia	**3m**	**2m**	√
Brunoniella australis	Blue Trumpet	**0.3m**	**0.4m**	√
Bursaria spinosa	Tasmanian Christmas Bush	**10m**	**6m**	√
Callistemon linariifolius	Narrow-leaved Bottlebrush	**3.5m**	**2m**	√
Crinum pedunculatum	Crinum Lily	**2.5m**	**2.5m**	√
Dietes bicolor	Fortnight Lily	**1.0m**	**0.75m**	**X**
Doryanthes excelsa	Gymea Lily	**3m**	**2m**	√
Dodenea viscose	Giant Hop Bush	**3m**	**3m**	√
Gardenia augusta	Common Gardenia	**1.5m**	**1.0m**	**X**
Grevillea poorinda "Royal	Grevillea	**1.5m**	**1.5m**	√
Mantle"	Silky Hakea	**6m**	**3m**	√
Hakea sericea	Tick Bush	**2.5m**	**2m**	√
Kunzea ambigua	Finged Heath Myrtle	**0.15m**	**1.5m**	√
Micromyrtus ciliata	NZ Purple Flax	**1.0m**	**1.0m**	**X**
Phormium tenax "Purpureum"	Rock Thryptomene	**1m**	**0.5m**	√
Thryptomene saxicola	Coastal Rosemary	**2.0m**	**1.5m**	√
Westringia fruticosa				

Scientific name	Common name	Mature height	Mature spread	Native
Ground cover				
Aspidistra elatoir	Cast Iron Plant	**1m**	**0.8m**	**X**
Brachycome multifida	Cut Leaf Daisy	**0.3m**	**1m**	√
Dichondra repens	Kidney Weed	**0.1m**	**0.3m**	√
Grevillea 'Bronze Rambler'	Grevillea cultivar	**0.3m**	**0.4m**	√
Hardenbergia violaceae	Purple Coral Pea	**climbs to**	**1.5m**	√
Trachelospermum jasminoides	Star Jasmine	**1.5m**	**1.5m**	**X**
Viola hederacea	Native violet	**climbs to 6m**	**0.5m**	√
Wahlenbergia gracilis	Australian Bluebell	**0.2m** **0.3m**	**0.25m**	√
Grasses				
Aristida ramosa	Wire Grass	**0.5m**	**0.5m**	√
Danthonia tenuoir	Wallaby Grass	**0.3m**	**0.3m**	√
Imperta cylindrica	Cogon Grass	**0.5m**	**0.5m**	√
Liriope muscari	Turf Lily	**0.6m**	**0.5m**	**X**
Microlaena stipoides var. stipoides	Microlaena	**0.5m**	**0.3m**	√
Ophiopogon japonicus	Mondo Grass	**0.35m**	**0.3m**	**X**
Pennisetum alopecrroides	Fountain Grass	**1m**	**1m**	√
Poa labillardieri	Poa	**0.4m**	**0.25m**	√
Themeda australis	Kangaroo Grass	**1m**	**0.3m**	√
Sedges/rushes				
Carex appressa	Tall Sedge	**1m**	**0.5m**	√
Dianella caerulea	Flax Lily	**0.5m**	**0.3m**	√
Dianella revolute	Flax Lily	**1m**	**1m**	√
Gahnia aspera	Saw Sedge	**1m**	**0.4m**	√
Isolepis nodosa	Nobby Clubrush	**1m**	**1m**	√
Lomandra longifolia	Mat Rush	**0.7m**	**1m**	√
Lomandra multiflora	Many Flowered Mat Rush	**0.7m**	**0.7m**	√
Juncus usitatus	Common Rush	**1m**	**0.4m**	√
Turf				
Cynodon dactylon	Couch (improved types)	-	-	X

It is important to note that this plant list is indicative only to provide a guide on the range of suitable plants for the region with consideration of functional, aesthetic, salt tolerance and horticultural requirements. Part A of Blacktown DCP 2015 also provides an additional tree species list. The selection of species is expected to vary over time as a result of species availability, site conditions plant viability.